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Judgment Sheet

**IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI.**

JUDICIAL DEPARTMENT

Murder Reference No.87 of 2017
(The State Vs. Muhammad Anwar)

Criminal Appeal No. 1010 of 2017
(Muhammad Anwar and another Vs. The State and another)

Date of hearing: 26.10.2020.

Appellants by: Mr. Basharat Ullah Khan, Advocate

State by: Mr. Sajjad Hussain Bhatti, Deputy
Prosecutor General.

SADIQ MAHMUD KHURRAM, J.— Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan (convicts) were tried alongwith their co-accused namely Peeran Ditta and Tasawar Mahmood (both since acquitted) by the learned Additional Sessions Judge, Sohawa District Jhelum in the **cross version** case lodged on the report of Tazeem Akhtar (PW-15) in respect of offences under sections 302, 337-F(i), 337-F(ii), 337-A(i) and 34 PPC for committing the *Qatl-i-Amd* of Muhammad Baloch son of Peeran Ditta (deceased) {relating to FIR No. 144 of 2011 dated 9.10.2011 registered at police station Domeli, District Jhelum in respect of offences under sections 302 and 34 PPC}. The learned trial court vide judgment dated 31.10.2017 convicted Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan (convicts) and sentenced them as infra:

1) Muhammad Anwar son of Muhammad Maalik:

i). Death under section 302(b) PPC as Tazir for committing Qatl-i-Amd of Muhammad Baloch son of Peeran Ditta (deceased) and directed to pay Rs.200,000/- as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased in case of default thereof, the convict was further directed to undergo simple imprisonment for six months. The convict was ordered to be hanged by his neck till dead.

ii). Simple Imprisonment for six months under section 337-F(i) PPC and directed to pay Daman of Rs.10,000/- to Tazeem Akhtar (PW-15)

2) Muhammad Waqas son of Choudary Khan:

i). Imprisonment for life under section 302(b) PPC as Tazir for committing Qatl-i-Amd of Muhammad Baloch son of Peeran Ditta (deceased) and directed to pay Rs.100,000/- as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased in case of default thereof, the convict was further directed to undergo simple imprisonment for six months.

ii). Simple Imprisonment for six months under section 337-A(i) PPC and directed to pay Daman of Rs.20,000/- to Tazeem Akhtar (PW-15)

Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan (convicts) were extended the benefit provided under section 382-B of the Code of Criminal Procedure, 1898.

Peeran Ditta and Tasawar Mahmood, the co-accused of the convicts were acquitted by the learned trial court.

2. Feeling aggrieved, Muhammad Anwar son of Muhammad Maalik, (convict) and Muhammad Waqas son of Choudary Khan (convict) lodged Criminal appeal No.1010 of 2017 against their conviction and sentences. The learned trial court submitted Murder Reference No.87 of 2017 under section 374 Cr.P.C. seeking confirmation or otherwise of the sentence of death awarded to the appellant namely Muhammad Anwar son of Muhammad Maalik. We intend to dispose of the Criminal Appeal No. 1010 of 2017 and Murder Reference No.87 of 2017 through this single judgment.

3. Precisely, the necessary facts of the prosecution case, as divulged in the statement of Tazeem Akhtar widow of Muhammad Baloch (PW-15) are as under:-

“Stated that on 09/10/2011 about 01:30pm I was present in my house alongwith my husband Muhammad Baloch. We heard the noise of strike on our roof then we went to roof of our house. We saw that the accused Peeran Ditta alias Allah Ditta, Tasawar Hussain, Muhammad Anwar & Muhammad Waqas were fixing iron bores (saryas) in our wall. My husband Muhammad Baloch asked them do not fix the saryas as it may demolish the house which is 50 years old. The accused persons insisted on fixing the saryas and my husband Muhammad Baloch asked them although he is issueless and disable person but would not allow them to take possession of the house. The accused asked Muhammad Baloch that if he has eager of death then he should be ready for it. These words were uttered at roof of our house. The accused started to beat Muhammad Baloch. Accused Anwar gave blow of spade which hit on the head of Muhammad Baloch. Accused Tasawar gave blow of danda on the head of Muhammad Baloch. Accused Waqas gave blow of danda which hit on the head of Muhammad Baloch. Accused Peeran Ditta alias Allah Ditta gave blow wood log (phata) on the head of the Muhammad Baloch and Muhammad Baloch fell down. I raised hue and cry to save Muhammad Baloch but no one appeared there. The accused said that whoever would come to escape Muhammad Baloch he would also be murdered. The accused continue beating with their weapons to the Muhammad Baloch and I laid on him to save him. All accused persons also beaten me with their respective weapons when I was laying on Muhammad Baloch. Accused Peeran Ditta gave blow of danda which hit on my shoulder. Accused Tasawar gave blow of danda which hit on my right ribs. Accused Anwar gave blow of spade which hit on my right hand wrist. Accused Waqas gave blow of danda which hit on my nose. I was in conscious condition and was laying at some distance at the roof from my injured husband. Police of P.S Domeli arrived at the roof of the house from where I and my husband Muhammad Baloch were shifted to RHC Domeli. Muhammad Baloch was in serious condition and MO of RHC Domeli referred him to PIMS Islamabad. Medical officer advised for my X-ray and reference to DHQ hospital Jhelum. Police did not take me to DHQ hospital Jhelum. On 10/10/2011 Muhammad Baloch was expired in PIMS

Islamabad. After that 1.0 of the case Khalid Hussain recorded my statement Ex.PB and I affixed my thumb impression as Ex.PB/1. The police arrested me and I was not allowed to participate funeral prayer of my husband. I also recorded supplementary statement u/s 161 Cr.P.C to I.O Khalid Hussain in respect of clearance of name of accused Tasawar son in law of Muhammad Rafique. The accused are real culprits who have murdered my husband Muhammad Baloch and injured me brutally and they may be awarded maximum punishment in accordance with law.”

4. After the formal investigation of the case report under section 173 of the Code of Criminal Procedure, 1898 was submitted before the learned trial court wherein the appellants namely Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan (convicts) alongwith their co-accused namely Peeran Ditta and Tasawar Mahmood (both since acquitted) were sent to face trial. The learned trial court framed the charge against the accused on 07.12.2016, to which the appellants and their co-accused pleaded not guilty and claimed trial.

5. The prosecution/complainant in order to prove its case got recorded statements of **fifteen** witnesses. Tazeem Akhtar widow of Muhammad Baloch (PW-15) gave evidence regarding the ocular account. Umar Gulzar 454/HC (PW-1) stated that on 10.10.2011 Khalid Hussain S.I. (PW-9) collected the blood from the place of occurrence and took into possession the same through recovery memo (Exh. PA). Ehsan Mehmood A.S.I. (PW-2) stated that on 18.10.2011 he received two sealed parcels from Allah Ditta 474/C which on the same day he handed over to Javed Iqbal 934/C (PW-3) for their onward transmission to the office of Punjab Forensic Science Agency, Lahore. Javed Iqbal 934/C (PW-3) stated that on 27.10.2011 Ehsan Mehmood A.S.I. (PW-2) handed over two sealed parcels to Javed Iqbal 934/C (PW-3) for their onward transmission to the office of Punjab

Forensic Science Agency, Lahore. Khalid Ahmad 416/C (PW-6) stated that on 4.10.2015 Muhammad Anwar (appellant) led to the recovery of piece of wood (P-1) whereas on 07.10.2016 Muhammad Waqas appellant led to the recovery of a *Danda* (P-2). Ali Waqas 219/C (PW-7) stated that on 10.10.2011 he escorted the dead body of the deceased to the hospital for its post mortem examination and received the last worn clothes of the deceased from the Medical Officer.. Bashir Ahmad Awan, draftsman (PW-12) prepared three copies of the site plan of the place of occurrence (Exh. PU, PV and PW). Muhammad Jalil-ur-Rehman (PW-13) identified the dead body of the deceased. Muhammad Ashraf S.I. (PW-10) investigated the case from 06.07.2015 till 12.07.2015 and detailed the facts of his investigation in his statement before the learned trial court. Afzal Mehdi S.I. (PW-14) investigated the case from 21.09.2015 till 07.10.2015 arrested Muhammad Anwar (appellant) on 23.09.2015 and detailed the facts of his investigation in his statement before the learned trial court. Basharat Ahmad S.I. (PW-11) investigated the case from 05.07.2016 till 07.10.2016, arrested Muhammad Waqas (appellant) on 04.10.2016 and detailed the facts of his investigation in his statement before the learned trial court. Khalid Hussain S.I. (PW-9) investigated the case from 9.10.2011 till 26.11.2011 and detailed the facts of his investigation in his statement before the learned trial court.

6. The prosecution got Dr. Muhammad Shabbir Awan (PW-5) examined who on 09.10.2011 was posted as Medical Officer at RHC Domeli and on the same day examined Tazeem Akhtar wife of Muhammad Baloch (PW-15). Dr. Muhammad Shabbir Awan (PW-5), on examining Tazeem Akhtar wife of Muhammad Baloch (PW-15) observed as under:

“Injuries

1. Abrasion 2x2 cm on palm of right hand. Blood clotted around margins with swelling of the right hand.
2. Tender left Anterolateral side of the chest.
3. Swelling and bleeding from the nose.

.....

Kind of weapon blunt”

Dr. Muhammad Shabbir Awan (PW-5) on 09.10.2011 also examined Muhammad Baloch son of Peeran Ditta (then injured later deceased). Dr. Muhammad Shabbir Awan (PW-5) , on examining Muhammad Baloch son of Peeran Ditta (then injured later deceased) ,observed as under:

“Injuries

1. On the left occipital bone, laceration 6 cm x 0.5 cm, bone exposed & bone fractured seen. Blood clotted around wound margins; Blacking & Swelling of both Right & Left Eye due to head injury, Bleeding from the nose due to head injury.
- 2.Laceration 4 cm x 0.5 cm, bone exposed & blood clotted around wound margins on the top of occipital bone.
- 3.1 cm below left ear on the neck I abrasion 1 cm x 1 cm.
- 4.On the extensor surface of left hand, abrasion 2 cm x 1 cm.
- 5.Abrasion 0.5 cm x 0.5 cm alongwith swelling over left 2nd metacarpophalangeal joint.
- 6.Abrasion 1 cm x 1 cm over extensor surface of right hand.

.....

Kind of weapon blunt”.

The prosecution also got Dr. Syed Ikhtlaq Hussain Shah (PW-4) examined who on 10.10.2011 was posted as Medical Officer at THQ hospital Sohawa and on the same day conducted the post mortem examination of the body of Muhammad Baloch son of Peeran Ditta (deceased). Dr. Syed Ikhtlaq Hussain Shah (PW-4), on examining the body of Muhammad Baloch son of Peeran Ditta (deceased) observed as under:

“EXAMINATION OF NECK.

An abrasion of 1 cm x 1 cm on the left side of neck, 1 cm below the left ear.

INJURIES.

1. *A stitched wound measuring 6 cm on left side of occipital bone above 10 cm from left ear.*
2. *A stitched wound 4 cm on the top of occipital bone.*
3. *Blackening and swelling of right eye.*
4. *Blackening and swelling of left eye.*
5. *An abrasion of 1 cm x 1cm on the left side of neck was present and was 1 cm below the left ear.*
6. *An abrasion of 2 cm x 1 cm on the external surface of left hand.*
7. *An abrasion of 0.5 cm x 0.5 cm alongwith swelling over left 2nd metacarpophalangeal joint. Dark red in colour.*
8. *An abrasion 1 cm x 1 cm over external surface of right hand.*
Dark red in colour.
9. *Clotted blood in the nostrils.*

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OPINION.

After performing external and internal postmortem of deceased , I am of the opinion that cause of death is injury No.1&2. Both injuries were ante-mortem in nature caused by heavy blunt weapon probably. However the final opinion was to the given after receipt of reports of chemical and histopathology examination.”

7. On 22.09.2017, the learned ADPP, gave up PWs Allah Ditta 474/C, Shahzad Ali 1108/C, Amjad Ali 623/C and Saddam Hussain 892/C as being unnecessary . On 23.10.2017 the learned ADPP closed the prosecution evidence after tendering in evidence the report of Punjab Forensic Science Agency, Lahore, (Exh. PY) and the report of SP Investigation, Jhelum (Exh.PZ)

8. After the closure of prosecution evidence, the learned trial court examined the appellants namely Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan under section 342 Cr.P.C. and in answer to question why this case against you and why the PWs have deposed against you, the appellants replied that they were innocent and had been falsely involved in the case due to enmity. The appellants further stated that they had not committed the occurrence. The appellants namely Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan opted not to get themselves examined under section 340(2) Cr.P.C. and did not adduce any evidence in their defence.

9. On the conclusion of the trial, the learned Additional Sessions Judge, Sohawa convicted and sentenced the appellants as referred to above.

10. The contention of the learned counsel for the appellants precisely is that whole case is fabricated and false. The learned counsel for the appellants submitted that the prosecution remained unable to prove the facts in issue and did not produce any unimpeachable, admissible and relevant evidence. The learned counsel for the appellants further contended that the statement of Tazeem Akhtar (PW-15) was not worthy of any reliance. The learned counsel for the appellants also argued that the proceedings of the recoveries made were full of procedural defects, of no legal worth and value and result of bogus actions. The learned counsel for the appellants finally submitted that the prosecution has totally failed to prove the case against the appellants beyond the shadow of doubt.

11. On the other hand, the learned Deputy Prosecutor General contended that the prosecution has proved its case beyond shadow of doubt by producing independent witnesses. The learned Deputy Prosecutor General further argued that the deceased died as a result of injuries suffered at the hands of the appellants during the occurrence. The learned Deputy Prosecutor General further contended that the medical evidence also corroborated the statement of Tazeem Akhtar (PW-15). The learned Deputy Prosecutor General further argued that the recoveries from the appellants also corroborated the ocular account. The learned Deputy Prosecutor General contended that there was no occasion for the prosecution witnesses, who were related to the deceased, to substitute the real offenders with the innocent in this case. Lastly, he prayed for the rejection of appeal.

12. We have heard the learned counsel for the appellant, the learned Deputy Prosecutor General and with their assistance, perused the record and evidence documented during the trial, judiciously.

13. The whole prosecution case revolves around the statement of Tazeem Akhtar widow of Muhammad Baloch (PW-15), the sole eye witness of the occurrence produced by the prosecution before the learned trial court. Muhammad Baloch (deceased) was the husband of Tazeem Akhtar widow of Muhammad Baloch (PW-15). We have already mentioned that along with the appellants their co-accused namely Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted) were tried. The learned trial court acquitted the above mentioned co-accused of the charge. We have queried the learned Deputy Prosecutor General regarding the filing or otherwise of an appeal against the acquittal of the said co-accused, who has stated that the acquittal of Peeran Ditta son of Abuzar and

Tasawar Mahmood son of Safdar Hussain (both since acquitted) had attained finality as neither the State nor the complainant or any other aggrieved person had filed any appeal against the acquittal of Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted), the co-accused of the appellants. The question for determination before this Court now is that whether the evidence which has been disbelieved qua the acquitted co-accused of the appellants, can be believed against the appellants. The proposition of law in Criminal Administration of Justice, that a common set of witnesses can be used for recording acquittal and conviction against the accused persons who were charged for the commission of same offence, is now a settled proposition. The august Supreme Court of Pakistan has recently held that partial truth cannot be allowed and perjury is a serious crime. This view stems from the notion that once a witness is found to have lied about a material aspect of a case, it cannot then be safely assumed that the said witness will declare the truth about any other aspect of the case. We have noted that the view should be that *"the testimony of one detected in a lie was wholly worthless and must of necessity be rejected."* If a witness is not coming out with the whole truth then his evidence is liable to be discarded as a whole meaning thereby that his evidence cannot be used either for convicting accused or acquitting some of them facing trial in the same case. This proposition is enshrined in the maxim *falsus in unofalsus in omnibus*. The august Supreme Court of Pakistan in Criminal Miscellaneous Application No. 200 of 2019 in Criminal Appeal No. 238-L of 2013 reported as **PLD 2019 Supreme Court 527** has enunciated the following binding principles:-

“The Pakistan Penal Code, 1860 (P.P.C.) contains many offences dealing with perjury and giving false testimony. The very fact that there is a whole

chapter, numbered XI, dedicated to such offences amply testifies to the fact that matters relating to giving of testimony were taken very seriously by those who drafted the P.P.C. and their continued retention in the P.P.C. ever since reflects the will of the legislature, which is the chosen representative body of the people of Pakistan through which they exercise their authority within the limits prescribed by Almighty Allah. The following sections, listed under Chapter XI titled "Of False Evidence And Offences Against Public Justice", highlight the fact that giving false testimony has been treated to be a very serious matter entailing some serious punishments.

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Holding that the rule falsus in uno, falsus in omnibus is inapplicable in this country practically encourages commission of perjury which is a serious offence in this country. A court of law cannot permit something which the law expressly forbids.

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21. We may observe in the end that a judicial system which permits deliberate falsehood is doomed to fail and a society which tolerates it is destined to self-destruct. Truth is the foundation of justice and justice is the core and bedrock of a civilized society and, thus, any compromise on truth amounts to a compromise on a society's future as a just, fair and civilized society. Our judicial system has suffered a lot as a consequence of the above mentioned permissible deviation from the truth and it is about time that such a colossal wrong may be rectified in all earnestness. Therefore, in light of the discussion made above, we declare that the rule falsus in uno, falsus in omnibus shall henceforth be an integral part of our jurisprudence in criminal cases and the same shall be given effect to, followed and applied by all the courts in the country in its letter and spirit. It is also directed that a witness found by a court to have resorted to a deliberate falsehood on a material aspect shall, without any latitude, invariably be proceeded against for committing perjury."

Guided by the said judgment of the august Supreme Court of Pakistan , we have examined the prosecution evidence. We have scrutinized the statement of Tazeem Akhtar widow of Muhammad Baloch (PW-15), the sole eye

witness of the occurrence. Tazeem Akhtar widow of Muhammad Baloch (PW-15) in her statement before the learned trial court, stated as under:

*“Accused **Tasawar** gave blow of danda on the head of Muhammad Baloch. Accused Waqas gave blow of danda which hit on the head of Muhammad Baloch. Accused Peeran Ditta alias Allah Ditta gave blow wood log (phata) on the head of the Muhammad Baloch and Muhammad Baloch fell down.*

.....

*The accused continue beating with their weapons to the Muhammad Baloch and I laid on him to save him. All accused persons also beaten me with their respective weapons when I was laying on Muhammad Baloch. **Accused Peeran Ditta** gave blow of danda which hit on my shoulder. **Accused Tasawar** gave blow of danda which hit on my right ribs.*

The perusal of the above-mentioned portion of the statement of Tazeem Akhtar widow of Muhammad Baloch (PW-15) clearly reveals that according to the said eye witness it was the appellants and their co-accused namely Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted) who all gave beating to Muhammad Baloch (deceased) and no distinction was drawn by the said eye witness with regard to the role of the appellants and their co-accused namely Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted) during the occurrence while making her statement before the learned trial court . We are unable to find any independent corroboration of the prosecution case against the appellants and we are unable to distinguish the case of the appellants from the case of acquitted co-accused namely Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted) as the prosecution evidence with regard to the appellants namely

Muhammad Anwar and Muhammad Waqas and with regard to their co-accused namely Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted), is similar. Tazeem Akhtar widow of Muhammad Baloch (PW-15) was adjudged to have deposed falsely against Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted). We find no reason to believe her statement with regard to the appellants in absence of any reason to do so. This lying on part of the witness with regard to Peeran Ditta son of Abuzar and Tasawar Mahmood son of Safdar Hussain (both since acquitted) has vitiated our trust in her. We are thus satisfied that the evidence of Tazeem Akhtar widow of Muhammad Baloch (PW-15) has no worth and is to be rejected outright.

14. Learned Deputy Prosecutor General has laid great stress on the fact that Tazeem Akhtar widow of Muhammad Baloch (PW-15) was injured in the occurrence hence she having the stamp of injuries on her body, is to be relied upon. According to Tazeem Akhtar widow of Muhammad Baloch (PW-15) she was given beating by as many as four accused with their respective weapons hitting on various parts of her body, however, Dr. Muhammad Shabbir Awan (PW-5) , on examining Tazeem Akhtar wife of Muhammad Baloch (PW-15) observed an abrasion of the dimension of 2x2 cm on the palm of her right hand and swelling and bleeding from the nose. According to Dr. Muhammad Shabbir Awan (PW-5) , the said injuries on the person of Tazeem Akhtar wife of Muhammad Baloch (PW-15) were caused by a blunt weapon. Furthermore, , Dr. Muhammad Shabbir Awan (PW-5) stated that the injuries observed on the person of Tazeem Akhtar wife of Muhammad Baloch (PW-15) were kept under observation, however till date the kind of the said injuries was not declared. Dr. Muhammad

Shabbir Awan (PW-5) further stated that he did not admit Tazeem Akhtar (PW-15) in hospital and had also not mentioned the colour of injury observed on her body. In absence of such observation the age of the injury could not be determined. The receiving of a single abrasion on the palm of a right hand and bleeding from the nose as observed by Dr. Muhammad Shabbir Awan (PW-5) on the body of Tazeem Akhtar wife of Muhammad Baloch (PW-15) runs contrary to the statement made by Tazeem Akhtar (PW-15) before the learned trial court wherein she had stated that she was given beating by as many as four persons hitting her shoulder, ribs, wrist and nose. Furthermore, Tazeem Akhtar (PW-15) had stated before the learned trial court that the injury on her shoulder was given by Peeran Ditta (since acquitted) and the injury upon her ribs was given by Tasawar Mahmood (since acquitted). As mentioned above, the acquittal of both Peeran Ditta and Tasawar Mahmood, the co-accused of the appellants has attained finality and Tazeem Akhtar (PW-15) was adjudged to have deposed falsely with regard to the allegations levelled against the said Peeran Ditta and Tasawar Mahmood (both since acquitted). We find no reason to believe her statement with regard to the appellants in view of the utter lack of support of the statement of Tazeem Akhtar (PW-15) from the medical evidence rather the medical evidence available in this case goes on to prove that Tazeem Akhtar (PW-15) had made a false statement. Khalid Hussain S.I. (PW-9) the Investigating Officer of the case, during cross-examination stated that the version of Tazeem Akhtar (PW-15) was not supportive by any witness. The august Supreme Court of Pakistan has repeatedly held that the stamp of injuries on the person of a witness can be a proof of his presence at the place of occurrence, however, it can never be held that he also will tell

truth .It has been held that the facts which an injured witness narrates are not to be implicitly accepted rather they are to be attested and appraised on the principles applied for the appreciation of evidence of any prosecution witness regardless of him being injured or not. Guidance is sought from the principle enunciated by the august Supreme Court of Pakistan in the case of Nazir Ahmad vs. Muhammad Iqbal and another (2011 SCMR 527) where at page 534 the august Supreme Court of Pakistan was pleased to hold as under:

“It is settled law that injuries of P.W are only indication of his presence at the spot but are not affirmative proof of his credibility and truth”.

Guidance is also sought from the principle enunciated by the august Supreme Court of Pakistan in the case of Amin Ali and another Vs. The State (2011 SCMR 323) where the august Supreme Court of Pakistan was pleased to hold that presence of injuries does not stamp a witness to be a truthful one.

15. We have also noted with grave concern that Tazeem Akhtar (PW-15) made dishonest improvements to her previous statement. The said improvements made by Tazeem Akhtar (PW-15) were substantial and were made with regard to crucial aspects of the prosecution evidence. Tazeem Akhtar (PW-15) not only introduced improvements in her statement with regard to her arrival at the place of occurrence but also with regard to the roles of the appellants in the occurrence. By improving her previous statement , Tazeem Akhtar (PW-15) impeached her own credit. During cross-examination Tazeem Akhtar (PW-15) was confronted with her previous statement and the learned trial court observed as under:-

*"I had stated before I.O that we heard the noise of strike on our roof then we went to the roof of our house. **Confronted with Ex.PX where is not so recorded.** I had stated before the I.O that we saw that the accused peeran Dittar, Tasawar, Muhammad Anwar and Muhammad Waqas fixing iron bars (sarya) in our wall. **Confronted with Ex.PX where it is not so recorded.** I had stated before I.O that my husband Muhammad Baloch do not fixed the sarya as it may demolish the house which is 50 years old. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that accused persons fixing the sarya and my husband Muhammad Baloch asked them although he is issueless person but would not allow them to take possession of the house. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that accused asked Muhammad Baloch that if he has eager to death then he should be ready for it these words were uttered at the roof of our house. **Confronted with Ex.PX where it is not so recorded.** I had not stated before the I.O that my husband Muhammad Baloch took 12 bore rifle and fired on Muhammad Ifrat which hit him. **Confronted with EX.PX where it is not so recorded.** It is incorrect to suggest that I deposed falsely in this regard. I had not stated before the I.O that during the occurrence I became unconscious. **Confronted with Ex.PX where it is not so recorded.** I had not mentioned the name of Muhammad Ifrat S/O Muhammad Malik in Ex.PX **confronted with Ex.PX where it is so recorded.** I had stated before the I.O that accused Taswar gave blow of danda on the head of the Muhammad Baloch. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that accused Waqas gave blow of danda which hit on the head of the Muhammad Baloch **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that accused Peeran Ditta alias Allah Ditta gave blow of wood log (Phatta) on the head of Muhammad Baloch and Muhammad Baloch was fell down. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O I raised hue and cry to save Muhammad Baloch but no one appeared there. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that accused said that whoever would come to escape Muhammad Baloch he would also be murdered. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that the accused continue beating with their weapons and I laid down on him to save him. **Confronted Ex.PX where it is not so recorded.** I had stated before the I.O that accused persons also beaten me with their respective weapons when I was laying on Muhammad Baloch.*

*Accused Peeran Ditta gave blow of danda which hit on my shoulder. Accused Tasawar gave blow of danda which hit on my right ribs. Accused Anwar gave blow of spade which hit on my right hand wrist. Accused Waqas gave blow of danda which hit on my nose. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that I was in conscious condition and was laying at some distance from my husband at the roof. **Confronted with Ex.PX where it is not so recorded.** I had stated before the I.O that police of P.S Domeli arrived at the roof of our house from where I and my husband Muhammad Baloch were shifted to RHC Domeli. **Confronted with Ex.PX where it is not so recorded.**”*

Article 151 of the Qanun-e-Shahadat Order 1984 provides as under:-

“151. Impeaching credit of witness. The credit of a witness may be impeached in the following ways by the adverse party, or, with the consent of the Court, by the party who calls him:

(1) by the evidence of persons who testify that they, from their knowledge of the witness, believe him to be unworthy of credit;

(2) by proof that the witness has been bribed, or has accepted the offer of a bribe, or has received any other corrupt inducement to give his evidence ;

(3) by proof of former statements inconsistent with any part of his evidence which is liable to be contradicted ;”

As Tazeem Akhtar (PW-15) had introduced dishonest, blatant and substantial improvements in her statement and was confronted with her former statement (Exh. PX) , hence her credit stands impeached and she cannot be relied upon. The august Supreme Court of Pakistan in the case of *“Muhammad Ashraf Vs. State”* (2012 SCMR 419) took a serious notice of the improvements introduced by witnesses and rejected their evidence. We, thus, are satisfied that the evidence of Tazeem Akhtar (PW-15) has no intrinsic worth and is to be rejected out rightly. The august Supreme Court

of Pakistan in a recent case reported as “Muhammad Mansha Vs. The State” (2018 SCMR 772) has enunciated the following principle:

“Once the Court comes to the conclusion that the eye witnesses had made dishonest improvements in their statements then it is not safe to place reliance on their statements. It is also settled by this Court that whenever a witness made dishonest improvement in his version in order to bring his case in line with the medical evidence or in order to strengthen the prosecution case then his testimony is not worthy of credence”.

The august Supreme Court of Pakistan in the case reported as Muhammad Arif Vs. The State (2019 SCMR 631) has enunciated the following principle:

“It is well established by now that when a witness improves his statement and moment it is observed that the said improvement was made dishonestly to strengthen the prosecution, such portion of his statement is to be discarded out of consideration. Having observed the improvements in the statements of both the witnesses of ocular account, we hold that it is not safe to rely on their testimony to maintain conviction and sentence of Muhammad Arif (appellant) on a capital charge.”

16. Another aspect of the case is that as a result of events which took place on 9.10.2011, two persons loss their lives. The instant case was investigated with regard to the death of Muhammad Baloch (deceased), whereas the FIR No. 144 of 2011 dated 9.10.2011 was registered at police station Domeli, District Jhelum in respect of offences under sections 302 and 34 PPC with regard to the death of Muhammad Ifrat (deceased), the brother of Muhammad Anwar (appellant). Tazeem Akhtar (PW-15) admitted during cross-examination that she was convicted and sentenced to imprisonment for life by the learned trial court in the trial of the case FIR No.144 of 2011. She also admitted during cross-examination that (Exh.DA) was the attested copy of the evidence recorded by the learned trial court in the case FIR No. 144 of 2011 and her statement recorded under section 342 of the Code of Criminal

Procedure, 1898. Despite this knowledge, Tazeem Akhtar (PW-15) continue to deny that Muhammad Ifrat (deceased) was murdered during the same occurrence at the same place. She was also confronted with her previous statement (Exh. PX) wherein she had got recorded that Muhammad Baloch (deceased) had fired with his gun causing the murder of Muhammad Ifrat (deceased) the brother of Muhammad Anwar (appellant). Tazeem Akhtar (PW-15) during cross-examination stated as under:-

“It is correct that FIR No. 144 dated 09/10/2011 u/s 302/34 PPC got registered against me and my husband. I never saw if in the above said occurrence Muhammad Ifrat S/O Muhammad Malik was murdered.”

This conduct of Tazeem Akhtar (PW-15) in suppressing her role in the occurrence and also denying the fact that Muhammad Ifrat (deceased) the brother of Muhammad Anwar (appellant) lost his life during the occurrence has also convinced us that Tazeem Akhtar (PW-15) failed to make a truthful statement and hence cannot be relied upon. Khalid Hussain S.I. (PW-9) the Investigating Officer of the case, during cross-examination stated that the murder of Muhammad Ifrat (deceased) was committed due to the conduct of Tazeem Akhtar (PW-15). In this regard guidance is also sought from the principle enunciated by the august Supreme Court of Pakistan in the case of Bashir Ahmed and another Vs. The State and others (2019 S C M R 1417) where the august Supreme Court of Pakistan has observed as under:-

“Well orchestrated narrative by the witnesses that includes the injured, notwithstanding, we have noticed inherent shortcomings casting their shadow on the prosecution case. Naseer Bakhsh and Bashir Ahmad are real brothers, Ahmed Khan accused is former's son. Muhammad Zaman and Rehmat Ali also hail from the same clan; the entire household is in the array and in this backdrop argument that it is a case of wider net is not entirely beside the mark. Similarly, a pistol and shotgun, admittedly

with the deceased and the complainant, lend credence to hypothesis of aggression; renunciation of crime report by the complainant goes a long way to tremor the very basis of his case. Suppression of injuries of an opponent is yet another intriguing circumstance.”

Guidance is also sought from the principle enunciated by the august Supreme Court of Pakistan in the case of Shahbaz Vs. The State (2016 S C M R 1763) where the august Supreme Court of Pakistan has held as under:-

“The acquittal of Muhammad Abbas co-accused and acceptance of such acquittal on the part of the complainant party shows that the eye-witnesses produced by the prosecution were capable of falsehood and in the present case they had implicated not only Shahbaz appellant's real brother namely Muhammad Abbas co-accused but also their mother. In the same incident Shahbaz appellant had also sustained injuries but his sustaining of injuries had been completely suppressed by the prosecution.”

17. Learned Deputy Prosecutor General has also relied upon the evidence of motive and submitted that it corroborated the ocular account. The motive of the occurrence, as stated by Tazeem Akhtar (PW-15) was that the appellants and their co-accused were fixing iron bars into the wall of their house and when they were stopped by Muhammad Baloch (deceased), the appellants and their co-accused launched an attack. Tazeem Akhtar (PW-15) during cross-examination stated as under:-

“All reason behind the occurrence are due to Muhammad Ajayab who was annoyed my husband due to demand of my divorce.”

This statement of Tazeem Akhtar (PW-15) totally shatter the prosecution case with regard to the motive of the occurrence. Furthermore, Khalid Hussain S.I. (PW-9) the Investigating Officer of the case, during cross-examination stated as under:-

“It was found in my investigation that at the time of occurrence Muhammad Ifrat was raising construction on his own constructed wall. The lanter was not on the wall of deceased Muhammad Baloch.”

There are obvious contradictions in the statement of prosecution witnesses with regard to the particulars of motive alleged. Consequently, it is not determinable in this case as to what was the real cause of occurrence and as to what had actually happened immediately before the occurrence which had resulted into the death of Muhammad Baloch , deceased. Failure of the prosecution to produce any relevant evidence in support of the motive institutes that the appellants had no motive to commit the occurrence. We have thus reached a conclusion that the prosecution remained unable to establish any motive. Even otherwise a tainted piece of evidence cannot corroborate another tainted piece of evidence. The august Supreme Court of Pakistan has held in the case of Muhammad Javed v. The State (2016 SCMR 2021) as under:

“The said related and chance witnesses had failed to receive any independent corroboration inasmuch as no independent proof of the motive set up by the prosecution had been brought on the record of the case.”

18. Learned Deputy Prosecutor General has relied upon the recovery of the piece of wood (P-1) made from Muhammad Anwar (appellant) and the recovery of a wooden stick (P-2) made from Muhammad Waqas (appellant) . With respect to recovery of the said weapons from the appellants it has been observed that the Investigating Officers of the case, did not join any witness of the locality during the recovery of the said piece of wood (P-1) made from Muhammad Anwar (appellant) and the recovery of a wooden stick (P-2) made from Muhammad Waqas (appellant) which was in clear

violation of section 103 Cr.PC and therefore cannot be used as incriminating evidence against the appellants, being evidence which was obtained through illegal means and is hence hit by the exclusionary rule of evidence. Basharat Ahmad S.I. (PW-11) admitted during cross-examination that no person of the locality was associated to witness the recovery of a wooden stick (P-2) made from Muhammad Waqas (appellant). Similarly, Afzal Mehdi, S.I. (PW-14) the Investigating Officer of the case, also admitted that he did not join any person of locality in the investigation of the case so as to witness the recovery of the of the said piece of wood (P-1) made from Muhammad Anwar (appellant) The august Supreme Court of Pakistan in the case of “Muhammad Ismail and others Vs. The State” (2017 SCMR 898) at page 901 has held as under:-

“For the above mentioned recovery of weapons the prosecution had failed to associate any independent witness of the locality and, thus, the mandatory provisions of section 103, Cr.P.C. had flagrantly been violated in that regard.”

Furthermore, both the recovered articles, the piece of wood (P-1) and the wooden stick (P-2) had no stains of blood on them and no report from the Punjab Forensic Science Agency, Lahore was sought. In this manner the recovery of the piece of wood (P-1) and the wooden stick (P-2) does not further the case of prosecution against the appellants in any manner.

19. Learned Deputy Prosecutor General has also laid much premium on the abscondence of the appellants as proof of their guilt. The fact of abscondence of an accused can be used as a corroborative piece of evidence, which cannot be read in isolation but it has to be read along with substantive piece of evidence. The august Supreme Court of Pakistan has held in the case of Asadullah v. Muhammad Ali (PLD 1971 SC 541) that

both corroborative and ocular evidence are to be read together and not in isolation. As regards abscondence, the august Supreme Court of Pakistan has held in the case Rasool Muhammad v. Asal Muhammad (1995 SCMR 1373) that abscondence is only a suspicious circumstance. In the case of Muhammad Sadiq v. Najeeb Ali (1995 SCMR 1632) the august Supreme Court of Pakistan observed that abscondence itself has no value in the absence of any other evidence. It was also held in the case of Muhammad Khan v. State (1999 SCMR 1220) that abscondence of the accused can never remedy the defects in the prosecution case. In the case of Gul Khan v. State (1999 SCMR 304) it was observed by the august Supreme Court of Pakistan that abscondence per se is not sufficient to prove the guilt but can be taken as a corroborative piece of evidence. In the cases of Muhammad Arshad v. Qasim Ali (1992 SCMR 814), Pir Badshah v. State (1985 SCMR 2070) and Amir Gul v. State (1981 SCMR 182) it was observed that conviction on abscondence alone cannot be sustained. In the present case, substantive piece of evidence in the shape of ocular account has been disbelieved, therefore, no conviction can be based on abscondence alone.. Reliance is also placed on the cases of “Muhammad Farooq and another Vs. The State” (2006 SCMR 1707) and “Nizam Khan and 2 others Vs. the State” (1984 SCMR 1092) and Rohtas Khan vs. The State (2010 SCMR 566).

20. Considering all the above circumstances, we entertain serious doubt in our minds regarding the involvement of Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan (appellants), in the present case. It is settled principle of law that for giving benefit of doubt it is not necessary that there should be so many

circumstances rather if only a single circumstance creating reasonable doubt in the mind of a prudent person is available then such benefit is to be extended to an accused not as a matter of concession but as of right. The august Supreme Court of Pakistan in the case of “Muhammad Mansha Vs. The State” (2018 SCMR 772) has enunciated the following principle:

“Needless to mention that while giving the benefit of doubt to an accused it is not necessary that there should be many circumstances creating doubt. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of such doubt, not as a matter of grace and concession, but as a matter of right. It is based on the maxim, "it is better that ten guilty persons be acquitted rather than one innocent person be convicted". Reliance in this behalf can be made upon the cases of Tariq Pervez v. The State (1995 SCMR 1345), Ghulam Qadir and 2 others v. The State (2008 SCMR 1221), Muhammad Akram v. The State (2009 SCMR 230) and Muhammad Zaman v. The State (2014 SCMR 749).”

Reliance is also placed on the judgment of the august Supreme Court of Pakistan “Muhammad Akram Vs. the State” (2009 SCMR 230) in which it has been observed in paragraph No.13 of page 236 as infra:

“It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which

created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

21. For what has been discussed above, Criminal appeal No.1010 of 2017 lodged by Muhammad Anwar son of Muhammad Maalik, (convict) and Muhammad Waqas son of Choudary Khan (convict) is **accepted** and the conviction and sentence of the appellants awarded by the learned trial court through the impugned judgment dated 31.10.2017 are hereby set-aside. Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan (appellants) are **acquitted**. Muhammad Anwar son of Muhammad Maalik and Muhammad Waqas son of Choudary Khan (appellants) are directed to be released forthwith if not required in any other case.

22. **Murder Reference** is answered in **Negative** and the death sentence of Muhammad Anwar son of Muhammad Maalik is **Not Confirmed**.

(RAJA SHAHID MEHMOOD ABBASI) (SADIQ MAHMUD KHURRAM)
JUDGE JUDGE